

FIRST ENDORSEMENT

Executive Director, Civilian Complaint Review Board to Deputy Commissioner Amy J. Litwin, Department Advocate's Office, October 11, 2022. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2021 – 23020 against Police Officer Brian Mahon, Tax Registry No. 955116. The case was conferenced on September 22, 2022, before Deputy Commissioner of Trials Paul Gamble, who approved the negotiated penalty of forfeiture of FOURTY (40) vacation days and ONE (1) year dismissal probation.

Jonathan Darche

Executive Director
New York City Civilian Complaint Review Board



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2021-23020
BOOK & PAGE NO. Page 1 of 2
PERSONNEL ORDER NO.

RANK/TITLE POM	SURNAME, MAHON	FIRST BRIAN	M.I. P	COMMAND NARCOTIC BORO MAN NORTH
SHIELD NO. 26892	TAX REGISTRY NO. 955116	SOCIAL SECURITY NO.	DATE APPOINTED 07/09/2013	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL [X]
1. Police Officer Brian Mahon, on or about 14ay 30,2020, at approximately, 2245, while assigned to NARCBMN and on duty, in the vicinity of East 14th Street and 5th Avenue in Manhattan- New York County, wrongfully, used force. in thar he struck § 87(2)(b) with a baton in the arm without police necessity,	PLEADED GUILTY	DISMISSAL PROBATION 12.00 - It is recommended that the Respondent be DISMISSED from the New York City Police Department; but that the dismissal be held in abeyance for a period of one year, pursuant to section 14-115(d) of the Administrative Code, during which time the Respondent is to remain on the force at the Police Commissioners discretion and may be terminated at any time without further proceedings. VACATION DAYS 40.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2. Police Officer Brian Mahon, on or about May 30,2020. at approximately 2245, while assigned to NARCBMN and on duty, in the vicinity of East 14th Street and 5th Avenue in Manhattan. New York County wrongfully used force, in that he	PLEADED GUILTY	

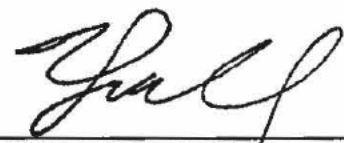
 2/15/23
FIRST DEPUTY COMMISSIONER DATE

POLICE COMMISSIONER'S APPROVAL

☒ Approved

☐ Disapproved

☐ Other Action (Describe)

 4/21/23
POLICE COMMISSIONER DATE



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO.
2021-23020

BOOK & PAGE NO.
Page 2 of 2

PERSONNEL ORDER NO.

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SHIELD NO. 26892	TAX REGISTRY NO. 955116	SOCIAL SECURITY NO.		DATE APPOINTED 07/09/2013

RANK/NAME OF COMPLAINANT	COMMAND
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DATE OF CHARGES	DATE TRIAL COMMENCED	DATE TRIAL CONCLUDED
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TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL [X]
struck § 87(2)(b) with a baton in the back without police necessity.		
3 . Police Officer Brian Mahon, on or about May 30,2020, at approximately 2245, while assigned to NARCBMN and on duty, in the vicinity of East 14th Street and 5th Avenue in Manhattan, New York County, wrongfully used force, in that he used physical force against an individual without police necessity.	PLEADED GUILTY	
4 . Police Officer Brian Mahon, on or about May 30,2020, at approximately 2245, while assigned to NARCBMN and on duty, in the vicinity of East 14th street and 5th Avenue in Manhattan, New York County, wrongfully used force, in that he pushed § 87(2)(b) without police necessity.	PLEADED GUILTY	
5 . Police Officer Brian Mahon, on or about July 7, 2020, at approximately 0921, while assigned to NARCBMN and on duty, in the vicinity of 100 church Street in Manhattan, New York County, provided misleading statement to the CCRB.	PLEADED GUILTY	


FIRST DEPUTY COMMISSIONER
2/15/25
DATE

POLICE COMMISSIONER'S APPROVAL

☒ Approved

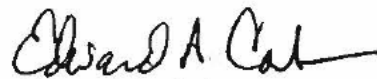
☐ Disapproved

☐ Other Action (Describe)


POLICE COMMISSIONER
4/21/23
DATE

THIRD ENDORSEMENT

First Deputy Commissioner to Police Commissioner, February 15, 2023. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. 2021-23020 against Police Officer Brian Mahon, Tax #955116, for the forfeiture of forty (40) vacation days and one (1) year Dismissal Probation. Assistant Deputy Commissioner, Trials, Paul Gamble reviewed this case and made a favorable recommendation pertaining to the proposed settlement; I concur. **RECOMMEND APPROVAL.**

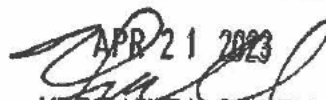


Edward A. Caban

FIRST DEPUTY COMMISSIONER

EAC/mcs

APPROVED



APR 21 2023
KWECHANITIL L. SEWELL
POLICE COMMISSIONER